

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE YAHYA AFRIDI, CJ
MR. JUSTICE SHAHID BILAL HASSAN

C.P.L.A. No. 3469/2025

[On appeal against judgment dated 04.06.2025 passed in RFA
No.94 of 2018 by Islamabad High Court, Islamabad]

T & T Employees Cooperative Housing Society
Islamabad

...Petitioner(s)

Versus

Haji Ghulam Hussain & Others

...Respondent(s)

For the Petitioner(s): : Mr. Ibad Ur Rehman Lodhi, ASC
Syed Rifaqat Hussain Shah, AOR

For the Respondent(s) No.1: : Mr. Abdul Rahman Hur, ASC

Date of Hearing : 12.03.2026

ORDER

SHAHID BILAL HASSAN, J- Through the instant petition, the Petitioner has called in question the judgment dated 04.06.2025 passed by the learned Islamabad High Court, whereby the Petitioner's Regular First Appeal was dismissed as being barred by limitation and otherwise incompetent.

2. Briefly stated, the Respondent/Plaintiff instituted a suit for specific performance and permanent injunction against the Petitioner and official defendants before the learned Civil Judge 1st Class, Islamabad-West, claiming enforcement of an alleged agreement relating to land situated in Village Pind Parian, Islamabad.

During pendency of the suit, the defendants were proceeded against ex parte vide order dated 22.12.2017. The Petitioner thereafter moved an application for setting aside the ex parte proceedings on the plea of non-service. The learned Trial Court framed an issue regarding due service of summons; however, upon failure of the Petitioner to substantiate such plea through evidence, the application was dismissed vide order dated 05.04.2018. On the same date, the suit was decreed ex parte in favour of the Respondent.

Feeling aggrieved, the Petitioner initially preferred an appeal before the learned District Judge, Islamabad-West, on 25.04.2018. The said appeal was returned on 30.05.2018 for want of pecuniary jurisdiction.

Thereafter, the Petitioner filed a Regular First Appeal before the learned High Court on 11.07.2018 against the ex parte judgment and decree dated 05.04.2018. The learned High Court, vide the impugned judgment, dismissed the appeal. Aggrieved thereby, the Petitioner has instituted the instant petition before this Court seeking leave to appeal.

3. Learned counsel for the Petitioner has contended that the Petitioner had been bona fide pursuing remedy before a wrong forum and, therefore, the delay merited condonation in the interest of substantial justice. It has been urged that procedural rules ought not to defeat adjudication on merits.

4. Learned counsel for the Respondent has supported the impugned judgment and contended that the Petitioner remained grossly negligent in pursuing the remedy available under law. It has been submitted that no satisfactory explanation was

furnished for the unexplained delay after return of the appeal by the learned District Judge and, therefore, no case for condonation was made out. Learned counsel has further urged that law of limitation confers valuable rights upon a successful litigant, which cannot be defeated on vague pleas of substantial justice or bona fide mistake.

5. We have heard the learned counsel for the parties and perused the available record.

6. At the very outset we note that the principles governing limitation are too well settled to admit any cavil. Law of limitation is not a mere technical rule of procedure, rather, it is founded upon sound public policy aimed at securing certainty, finality and repose in litigation. Once a valuable right accrues to a successful litigant by efflux of time, the same cannot be disturbed except upon demonstration of sufficient cause within contemplation of law¹. Equally settled is the principle that a party seeking condonation of delay must approach the Court with clean hands, disclose all material facts and furnish a plausible, satisfactory and bona fide explanation covering the entire period of delay². Negligence, indolence or casual conduct do not constitute sufficient cause. However, upon examination of the record, we find ourselves in agreement with the conclusion

¹ Ramlal and others v. Rewa Coalfields Ltd. (AIR 1962 SC 361); Imtiaz Ali v. Atta Muhammad and another (PLD 2008 Supreme Court 462); Government of Pakistan v. Malbrow Builders Contractor Sialkot (2006 SCMR 1248); Lal Khan through legal heirs v. Muhammad Yousaf through legal heirs (PLD 2011 Supreme Court 657)

² Khushi Muhammad v. Mst. Fazal Bibi (PLD 2016 SC 872); Secretary To Government Of Khyber Pakhtunkhwa Communication And Works Department, Peshawar and others v. Messrs Parcon Associate Government Contractors through Muhammad Haroon and others - (PLD 2025 Supreme Court 371); Lal Khan through LRs v. Muhammad Yousaf through LRs (PLD 2011 SC 657).

reached by the learned High Court on the question of limitation. Even if the period during which the matter remained pending before the learned District Judge is reckoned in favour of the Petitioner, the fact remains that after return of the memorandum of appeal on 30.05.2018, the Petitioner failed to approach the competent forum with due promptitude and allowed the matter to remain unattended for approximately 37 days. No plausible or satisfactory explanation has been furnished for such intervening delay. Mere filing before an incompetent forum does not confer an automatic right to exclusion or condonation of all subsequent delay. A litigant invoking equitable discretion must establish continuous bona fide pursuit of remedy. Where negligence intervenes after return of the proceedings, the protective plea of bona fide prosecution loses much of its force. The learned High Court has, therefore, aptly dealt with the matter in holding the appeal to be barred by limitation and dismissing the same accordingly.

7. We further note from the available record the callous manner in which the proceedings have been conducted by the Petitioner throughout. The suit was initially allowed to proceed ex parte against the Petitioner. Thereafter, although an application for setting aside the ex parte proceedings was moved, and an additional issue regarding validity of service of summons was framed, the said application came to be dismissed owing to failure of the Petitioner to produce any evidence in support thereof. Subsequently, the Petitioner preferred an appeal before a forum lacking pecuniary jurisdiction, resulting in return of the memorandum of appeal. Even thereafter, the appeal before the

learned High Court was instituted after an unexplained delay of approximately 37 days from the date of return, and was further rendered incompetent for non-impleadment of necessary parties. The cumulative conduct of the Petitioner unmistakably reflects negligence, lack of diligence and casual disregard for the process of law.

8. The crux of the above discussion is that the High Court has aptly adjudicated upon the matter in hand and has rightly non-suited the petitioner. No case for grant of leave is made out; consequent whereof leave is refused and the petition in hand stands dismissed.

CHIEF JUSTICE

JUDGE

Announced in open Court on 02.06.2026 at Lahore.

JUDGE

'APPROVED FOR REPORTING'
M.A. Hassan